

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Maura Roche	Team: Squad #10	CCRB Case #: 201900349	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 12/31/2018 1:08 AM	Location of Incident: north-west corner of West 207th Street and Vermilyea Avenue	Precinct: 34	18 Mo. SOL 6/30/2020	EO SOL 2/14/2021	
Date/Time CV Reported Sun, 01/13/2019 10:08 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 01/13/2019 10:08 PM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Steven Oquendo	01649	950985	SRG 1
2. POF Leslie Romero	13951	964738	034 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Errol Murphy	24047	953161	SRG 1
2. SGT Corey Maguire	02764	951950	034 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Steven Oquendo	Abuse: At the intersection of West 207th Street and Vermilyea Avenue in Manhattan, Police Officer Steven Oquendo frisked § 87(2)(b) [REDACTED]	[REDACTED]
B.POM Steven Oquendo	Abuse: At the intersection of West 207th Street and Vermilyea Avenue in Manhattan, Police Officer Steven Oquendo searched the vehicle in which § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] were occupants.	[REDACTED]
C.POM Steven Oquendo	Abuse: At the 34th Precinct stationhouse, Police Officer Steven Oquendo searched the vehicle in which § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] were occupants.	[REDACTED]
D.POM Steven Oquendo	Abuse: At the 34th Precinct stationhouse, Police Officer Steven Oquendo threatened to arrest § 87(2)(b) [REDACTED]'s girlfriend.	[REDACTED]
E.POF Leslie Romero	Abuse: At the 34th Precinct stationhouse, Police Officer Leslie Romero did not process § 87(2)(b) [REDACTED]'s complaint regarding officers.	[REDACTED]

Case Summary

On January 13, 2019, § 87(2)(b) filed this complaint on behalf of herself and her boyfriend, § 87(2)(b) with the CCRB online.

On December 31, 2018, at approximately 1:08 a.m., at the intersection of West 207th Street and Vermilyea Avenue in Manhattan, PO Errol Murphy and PO Steven Oquendo, both of SRG 1, pulled over the car, rented by § 87(2)(b) in which § 87(2)(b) and § 87(2)(b) were occupants because § 87(2)(b) was not wearing his seatbelt and because the car only had one dealer plate on the back of the vehicle and no plate on the front. PO Oquendo frisked § 87(2)(b) (Allegation A: Abuse of Authority – Frisk, § 87(2)(g) § 87(2)(b) who did not have a valid driver's license, was arrested for driving with a suspended license and for driving without his seatbelt (BR 01). PO Oquendo searched the main body of the car (Allegation B: Abuse of Authority – Vehicle Search, § 87(2)(g) and PO Murphy then transported the car to the 34th Precinct stationhouse. When PO Oquendo arrived at the 34th Precinct stationhouse, he lodged § 87(2)(b) in the holding cells, and then searched the trunk of the car (Allegation C: Abuse of Authority – Vehicle Search, § 87(2)(g) PO Oquendo went to speak with § 87(2)(b) further about the incident and allegedly told § 87(2)(b) that if § 87(2)(b) “didn’t stop bugging out about the keys, I’ll charge her for the bud of weed.” (Allegation D: Abuse of Authority – Threat of Arrest, § 87(2)(g) § 87(2)(b)

§ 87(2)(b) went to the 34th Precinct stationhouse and approached the desk area, where Sgt. Corey Maguire and PO Leslie Romero, both of the 34th Precinct, were stationed. § 87(2)(b) told PO Romero that she wanted to file a complaint against officers, and PO Romero told § 87(2)(b) that she could not file a complaint at the stationhouse and that she needed to contact the CCRB directly (Allegation E: Abuse of Authority – Refusal to Process Civilian Complaint, § 87(2)(g) § 87(2)(b)

There was no video of this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: At the intersection of West 207th Street and Vermilyea Avenue in Manhattan, Police Officer Steven Oquendo frisked § 87(2)(b)

Allegation (B) Abuse of Authority: At the intersection of West 207th Street and Vermilyea Avenue in Manhattan, Police Officer Steven Oquendo searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation (C) Abuse of Authority: At the 34th Precinct stationhouse, Police Officer Steven Oquendo searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation (D) Abuse of Authority: At the 34th Precinct stationhouse, Police Officer Steven Oquendo threatened to arrest § 87(2)(b) s girlfriend.

It was undisputed that on December 31, 2018, at approximately 1:08 a.m., PO Oquendo searched the car that § 87(2)(b) had rented at the intersection of West 207th Street and Vermilyea Avenue in Manhattan and at the 34th Precinct stationhouse. § 87(2)(g)

§ 87(2)(b) (BR 02 and BR 03) consistently stated that she had rented a gold Lexus ES 350 with a New Jersey dealer plate affixed to the back of the car using the TURO application, which allows individuals to rent vehicles directly from the owners. Per the rental agreement, § 87(2)(b) was the only person permitted to drive the car. On December 30, 2018, at approximately 10:45 p.m., § 87(2)(b) parked the rental car in front of a barbershop, located at 585 West 207th Street in Manhattan and waited in the car until approximately 12:05 a.m. while § 87(2)(b) got

his hair cut. When § 87(2)(b) was finished, § 87(2)(b) moved to the front passenger seat and § 87(2)(b) got into the driver's seat because § 87(2)(b) was tired and did not want to drive. § 87(2)(b) and § 87(2)(b) both put on their seatbelts, and § 87(2)(b) who had a suspended license, started driving. There was no marijuana in the car, and there was no smell of marijuana coming from the car.

When § 87(2)(b) and § 87(2)(b) were at the intersection of Vermilyea Avenue and West 207th Street, she noticed a car behind them signaling for them to pull over with lights and sirens. § 87(2)(b) immediately pulled over, and PO Oquendo and PO Murphy exited the police car. PO Oquendo approached § 87(2)(b) who was not sure where PO Murphy went. § 87(2)(b) provided PO Oquendo with his license and the vehicle registration, and § 87(2)(b) showed PO Oquendo the rental agreement on her phone. She also gave PO Oquendo the name and phone number of the car's owner, § 87(2)(b). PO Oquendo told § 87(2)(b) and § 87(2)(b) that he had stopped them because there was only one dealer plate on the car and that, by law, cars are required to have plates on the front and back of the car. § 87(2)(b) tried to explain to PO Oquendo that New Jersey does not require front and back plates. PO Oquendo did not listen to § 87(2)(b) and went back to his car with § 87(2)(b)'s license.

Approximately three to five minutes later, PO Oquendo and PO Murphy returned, and PO Oquendo told § 87(2)(b) to get out of the car, which he did. PO Oquendo placed § 87(2)(b) into handcuffs and told him that he was under arrest for driving with a suspended license and because the car did not have the proper license plates. PO Oquendo then led § 87(2)(b) to his police vehicle while PO Murphy asked § 87(2)(b) for her ID and to exit the car. § 87(2)(b) exited the car and gave her license to PO Murphy. PO Murphy and PO Oquendo then both looked inside the car with their flashlights but did not physically enter the car.

§ 87(2)(b) asked PO Oquendo to release the car to her because she was the person listed on the rental agreement. PO Oquendo told § 87(2)(b) that they were going to take the car to the 34th Precinct stationhouse because it did not have the proper license plates and that she should take a bus or Lyft to the stationhouse. PO Oquendo then left the location with § 87(2)(b) and PO Murphy left in the rental car.

After the officers left, § 87(2)(b) received a text message from § 87(2)(b) stating that he had gotten a call from an officer. § 87(2)(b) called § 87(2)(b) and he told her that the officer told him that there had been drugs in the car. § 87(2)(b) assured § 87(2)(b) that there were no drugs in the car, and then ordered a Lyft to take her to the stationhouse.

§ 87(2)(b) did not ever hear PO Oquendo threaten to charge or arrest her for possession of marijuana.

§ 87(2)(b)'s statements (**BR 04** and **BR 05**) were generally consistent with those of § 87(2)(b) with the following exceptions noted. § 87(2)(b) only provided PO Oquendo with a Pennsylvania non-drivers ID. The registration was displayed on a sticker on the front windshield. PO Oquendo called § 87(2)(b) and asked if § 87(2)(b) was permitted to drive the car, and § 87(2)(b) said that he was not.

After PO Oquendo sat § 87(2)(b) in the back of his car, § 87(2)(b) saw PO Oquendo place his knees on the front and back seats in the rental car, lean his upper bodies into the car, and look around inside the car with his flashlights. § 87(2)(b) could not see where he was looking or if he opened any interior compartments. PO Oquendo explained to § 87(2)(b) and § 87(2)(b) that he needed to search the car because of the neighborhood that they were in, and he did not provide any other justification for the search. § 87(2)(b) yelled from the back of the

police car for the officers to stop searching the rental car and asked that a supervisor respond to the location, and PO Oquendo refused to call for a supervisor.

§ 87(2)(b) asked that the car be released to her because she had rented it, there were no drugs in the car, and she had a valid license to drive the car. PO Oquendo told § 87(2)(b) that he had to take the car back to the stationhouse because he did not believe that the car was a rental and thought that it might have been stolen.

PO Oquendo brought § 87(2)(b) to the front desk and then brought him to the holding cells. There were no other people in the cells and no other officers in the area. PO Oquendo told § 87(2)(b) that if § 87(2)(b) “didn’t stop bugging out about the keys,” he could charge her “for the bud of weed.” § 87(2)(b) asked PO Oquendo what he was talking about, and PO Oquendo told him that he had found a bud of marijuana on the floor of the front passenger side of the car. § 87(2)(b) asked why he had not been charged and where exactly the marijuana had been found, but PO Oquendo refused to answer.

§ 87(2)(b)’s statement (BR 06) was generally consistent with those of § 87(2)(b) and § 87(2)(b) with the following exceptions noted. § 87(2)(b) received a call shortly after midnight from an officer, whose name § 87(2)(b) had forgotten, who wanted to know if he had rented a car to § 87(2)(b). § 87(2)(b) explained to the officer that he had rented the car to § 87(2)(b) using the TURO application, which his used-car dealership uses to arrange rent-to-own test drives for cars. § 87(2)(b) explained to PO Oquendo that because the car was being test-driven for a potential purchase, it was permitted to have a dealer plate and that in New Jersey, where the car was registered, only one dealer plate was required. The officer did not tell § 87(2)(b) why the car had been stopped, who had been driving the car, did not indicate that the car had been searched, and did not say anything about there being drugs in the car. § 87(2)(b) did not know where the officer was when he called him.

§ 87(2)(b) returned the car to § 87(2)(b) the next day and told § 87(2)(b) that she did not know why they had been stopped. § 87(2)(b) did not provide § 87(2)(b) with any further information about the incident.

PO Oquendo (BR 07) stated that he was driving eastbound on West 207th Street when he saw § 87(2)(b) driving a car with no front plate going westbound. § 87(2)(b) made a right onto Vermilyea Avenue, and PO Oquendo saw that § 87(2)(b) was not wearing a seatbelt and that the back license plate was from New Jersey, which requires both front and back plates. PO Oquendo signaled for § 87(2)(b) to stop and then approached § 87(2)(b). PO Oquendo did not know if PO Murphy came to the front driver’s side with him or went to the passenger side. As PO Oquendo was approaching § 87(2)(b) when he was by § 87(2)(b)’s back bumper, PO Oquendo smelled a strong odor of marijuana coming from inside § 87(2)(b)’s car. Because the odor was so strong, PO Oquendo could not tell if the marijuana was burnt or unburnt. PO Oquendo looked at PO Murphy and pointed to his nose, which is a signal that he uses to indicate that he smells marijuana, but he did not see PO Murphy acknowledge this signal.

PO Oquendo asked § 87(2)(b) for his license and registration, and § 87(2)(b) provided a Pennsylvania license and explained that the car had been rented using the TURO application. PO Oquendo asked § 87(2)(b) to step out of the car because he had smelled marijuana. PO Oquendo patted down the exterior of § 87(2)(b)’s clothing because he had smelled marijuana. § 87(2)(b) was verbally upset about being pulled over and, because § 87(2)(b) who was approximately 6’5” tall and over 300 pounds, while PO Oquendo was only 5’5” tall, PO Oquendo decided to call for an additional unit to respond as backup, which arrived shortly thereafter.

PO Oquendo handed the license to PO Murphy or one of the other responding officers, and they determined that the license was suspended. § 87(2)(b) was then placed under arrest for driving with a suspended license and for driving without a seatbelt. PO Oquendo put § 87(2)(b) into handcuffs and sat him in the back of his police car, while PO Murphy spoke with § 87(2)(b) who was standing outside of the car. § 87(2)(b) was upset, and she and § 87(2)(b) were both yelling loudly about what would happen to the car. PO Oquendo told § 87(2)(b) that they were going to take the car to the 34th Precinct stationhouse where § 87(2)(b)'s arrest would be processed and that she could meet them there. § 87(2)(b) asked that the car be released into her possession, but PO Oquendo explained to her that he needed to verify the ownership of the car and determine if she was permitted to drive it.

PO Oquendo gave § 87(2)(b) directions to the stationhouse, and then searched the front drivers side, the front passenger side, the glove compartment, and the center console in the car because he had smelled marijuana in the car. PO Oquendo did not recover anything from this search and, because § 87(2)(b) was still yelling loudly from the back of the police car, PO Oquendo decided to complete the rest of the vehicle search at the stationhouse. PO Oquendo then drove § 87(2)(b) to the stationhouse followed by PO Murphy in § 87(2)(b)'s rental car. When they arrived at the stationhouse, PO Oquendo registered § 87(2)(b) at the front desk and then lodged him in a holding cell.

Once § 87(2)(b) was in the holding cell, PO Oquendo searched § 87(2)(b)'s car, and he did not recover anything. At some point subsequent to § 87(2)(b)'s arrest, PO Murphy spoke with the car owner, § 87(2)(b) who confirmed that § 87(2)(b) had rented the car and that she was permitted to drive it. PO Oquendo could not recall when or where PO Murphy was when he made this call. Once it was established that § 87(2)(b) was permitted to drive the car, PO Oquendo released the car to her.

PO Oquendo denied ever telling § 87(2)(b) that he would charge § 87(2)(b) with marijuana and noted that he did not recover any marijuana from the car for which she could have been charged.

§ 87(2)(g)
PO Murphy did not initially see that § 87(2)(b)'s car did not have a front plate or that § 87(2)(b) was not wearing a seatbelt, but, upon approach, he took note of both these violations. PO Murphy approached the front passenger side of the car where § 87(2)(b) was sitting, and he smelled the odor of marijuana emanating from the interior of the car. When asked if the marijuana was burnt or unburnt, PO Murphy stated, "Who knows?" PO Murphy could not tell if the odor of marijuana was coming from a particular part of the car. Although § 87(2)(b) and § 87(2)(b) both stated that the car was a rental, there was no way of verifying this at the time of the stop. An officer, PO Murphy could not be sure if it was PO Oquendo or another responding officer, searched the car, but he could not see where within the car this officer searched.

PO Murphy could not be positive where he was when he spoke with § 87(2)(b) but thought that he was not able to get in touch with him until they were back at the stationhouse. PO Murphy could not recall if he told § 87(2)(b) that there had been an odor of marijuana in the car or any other details of the stop. PO Murphy did not ever hear PO Oquendo tell § 87(2)(b) that he would charge § 87(2)(b) for anything.

While it was undisputed that PO Oquendo searched the rented Lexus at the intersection of Vermilyea Avenue and West 207th Street in Manhattan and at the 34th Precinct stationhouse, § 87(2)(g) Although PO Oquendo and PO

Murphy both stated that they smelled marijuana coming from the car, § 87(2)(b) and § 87(2)(b) stated that they were not in possession of marijuana and that the car did not smell of marijuana. § 87(2)(g)

Although PO Oquendo stated that he frisked § 87(2)(b) this was not alleged by either § 87(2)(b) or § 87(2)(b)

According to People v. Chestnut, 43 A.D.2d 260 (1974) (**BR 09**), the smell of marijuana smoke, with nothing more, can be sufficient to provide officers with probable cause to search an automobile and its occupants.

§ 87(2)(g)
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Allegation (E) Abuse of Authority: At the 34th Precinct stationhouse, Police Officer Leslie Romero did not process § 87(2)(b) s complaint regarding officers.

It is undisputed that PO Romero did not take § 87(2)(b) complaint against PO Oquendo and instead instructed her to contact the CCRB directly.

§ 87(2)(b) consistently stated (**BR 02** and **BR 03**) that when she arrived at the 34th Precinct stationhouse, at approximately 1:30 a.m., she spoke with PO Oquendo, who provided her with his name and shield number. § 87(2)(b) then went to the desk and told an officer, identified by the investigation as PO Romero, that she wanted to file a complaint against PO Oquendo. PO Romero told § 87(2)(b) that she could not file a complaint at the stationhouse and that she would need to contact the CCRB directly either by phone or online. PO Romero pointed to a sign on the wall containing the CCRB's contact information. § 87(2)(b) took down this information, and, after PO Oquendo returned the car keys to her, she left.

§ 87(2)(b) (**BR 04** and **BR 05**) stated that he was not present when § 87(2)(b) tried to file a complaint against PO Oquendo at the stationhouse.

PO Romero (**BR 10**) stated that when § 87(2)(b) initially entered the stationhouse, she was speaking to someone on her cell phone and appeared to be upset because she was yelling loudly at the person on the other end of the line. § 87(2)(b) approached PO Romero, who was working as the telephone switchboard operator, and told her that she wanted to file a complaint. PO Romero asked her what type of complaint, and § 87(2)(b) stated, "I want to make a report against an officer." When PO Romero learned that § 87(2)(b) wanted to file a complaint against an officer and not a criminal complaint or an accident report, she pointed to the CCRB sign on the wall and told § 87(2)(b) to take down the information and contact the CCRB directly.

After § 87(2)(b) took a picture of the CCRB sign, PO Oquendo approached her and told her that he was § 87(2)(b) s arresting officer. PO Oquendo provided § 87(2)(b) with his name and shield number and asked her if he could help her with anything else. § 87(2)(b) told him, "No," and PO Oquendo walked back to the holding cell area.

PO Romero explained that it was her general understanding that complaints against officers needed to be filed with the CCRB. Whenever people approached PO Romero and requested to file a complaint against an officer, she would tell them that they could contact the CCRB by phone or online. PO Romero never took a complaint against an officer and was unaware of the procedure by which an officer would take a complaint against another officer.

§ 87(2)(g)

PO Oquendo heard § 87(2)(b) say something about a complaint, but this comment was not directed to him, and he was not sure to whom she was speaking at the time she made the complaint.

PO Murphy (**BR 08**) stated that he did not interact with § 87(2)(b) at the stationhouse and that he did not ever hear her request to file a complaint or PO Romero decline to take that complaint.

Sgt. Maguire (**BR 11**), who was the desk sergeant at the 34th Precinct stationhouse at the time of this incident, had no recollection of any civilians requesting to file a complaint against an officer at any point during his tour. He stated that civilians who wanted to file a complaint against officers could fill out the complaint form at the stationhouse.

It was undisputed that, instead of taking § 87(2)(b) complaint against PO Oquendo at the stationhouse, PO Romero told § 87(2)(b) to contact the CCRB directly.

Patrol Guide Procedure 207-31 (**BR 12**) states that complaints against uniformed members of the service may be made at any patrol precinct, police service area, transit district, traffic unit, Internal Affairs Bureau, or any other office of the Department, including the Office of the Police Commissioner or of a deputy commissioner. To process a complaint made in person, uniformed members of the service must interview the complainant, give the complainant a copy of the Civilian Complaint Report (PD313-153), provide assistance to the complainant as needed to prepare the form, and have the complainant sign the form.

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party (**BR 13**).
- This is the first complaint to which § 87(2)(b) has been a party (**BR 14**).
- PO Oquendo has been a member of service for eight years and has been a subject in eight CCRB complaints and 14 allegations, none of which was substantiated § 87(2)(g).
- PO Romero has been a member of service for one year, and this is the first CCRB complaint to which she has been a subject.

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- As of August 20, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (**BR 15**).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 10

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date